other words, the amendment of the fundamental right makes the impugned law free from all blemish or infirmity.

2. Formulation of the Doctrine

The doctrine of eclipse was enunciated by the Supreme Court in the *Bhikaji* case[10] (1955). In this case, Section 43 of the Motor Vehicles Act (1939) was amended by the Central Provinces and Berar Motor Vehicles (Amendment Act 1947). This provision empowered the State Government to take over the motor transport business to the exclusion of individual operations. But it became void with the commencement of the constitution in 1950 as it violated the fundamental right under Article 19(1)(g).

Later, the 1st Amendment Act (1951) amended Article 19(6) and enabled the government to take over any trade or business either exclusively or in competition with the individuals. Consequently, the State Government issued a notification to take over the motor transport business. This notification was challenged in the Supreme Court. The State Government argued that from January 26, 1950 to June 18, 1951, Section 43 of the Motor Vehicles Act (1939) remained invalid, but the amendment of the provision under Article 19(6) by the 1st Amendment Act (1951) made the same Section 43 of the Act valid again.

Finally, the Supreme Court held that the impugned Act became, for the time being, eclipsed by the fundamental right but the amendment of Article 19(6) removed the shadow. In other words, the court upheld the validity of the notification by applying the doctrine of eclipse.

3. Application to Post-Constitutional Laws

Article 13(1) deals with the pre-Constitution laws while Article 13(2) deals with the post-Constitution laws. The latter prohibits the state from making a law which takes away or abridges the fundamental rights and any such law is void to the extent of the contravention[11].

In *Deep Chand* case[12] (1959), the Supreme Court held that the doctrine of eclipse applies only to the pre-Constitution laws and not to the post-Constitution laws. This is because, a post-Constitution law which contravenes a fundamental right is a nullity or void from its very inception and a still-born law. Therefore, it cannot be revived by a subsequent constitutional amendment. Accordingly, the court upheld the constitutionality of the Uttar Pradesh Transport Service (Development) Act, 1955 saying that it did not violate Article 31 of the Constitution.

In *Mahendra Lal Jain* case[13] (1962), the Supreme Court reiterated its verdict delivered in *Deep Chand* case[14] (1959) and held that the doctrine of eclipse cannot be applied to the post-Constitution laws. The court observed:

“The doctrine of eclipse will apply to pre-Constitution laws which are governed by Article 13(1) and would not apply to post-Constitution laws which are governed by Article 13(2). Unlike a law governed by Article 13(1) which was valid when made, the law made in contravention of the prohibition contained in Article 13(2) is a stillborn law either wholly or partially depending upon the extent of the contravention. Such a law is dead from the beginning and there can be no question of its revival under the doctrine of eclipse”.

However, the position in *Ambica Mills* case[15] (1974) was different. In this case, the Supreme Court reversed its earlier stand and applied the doctrine of eclipse even to a post-Constitution law. The court held that a post-Constitution law which violates the fundamental rights is not a nullity or void in all cases and for all purposes. Further, it said that there are many exceptions to the doctrine of absolute nullity